

22STCV26582 22STCV26582

County: los-angeles

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Case Number: 22STCV26582 Hearing Date: September 16, 2026 Dept: 729

Superior

Court of California

County

of Los Angeles

DEPARTMENT 729

TENTATIVE RULING

VERONICA BROWN,

vs.

CHA HOLLYWOOD MEDICAL CENTER, L.P., et al.

Case No.:

22STCV26582

Hearing Date: September 16, 2026

Defendant

CHA Hollywood Medical Center, L.P., d/b/a Hollywood Presbyterian Medical Center's motion for terminating sanctions against Plaintiff Veronica Brown is denied.

Defendant CHA Hollywood Medical Center, L.P., d/b/a Hollywood Presbyterian Medical Center's motion in the alternative for evidentiary sanctions is denied.

Defendant's request in the alternative for issue sanctions is denied.

Defendant's request for monetary sanctions against Plaintiff is granted in the amount of \$6,810.00.

Sanctions are payable by October 6, 2026.

Plaintiff's request for sanctions against Defendant and its counsel of record is denied.

Defendant CHA

Hollywood Medical Center, L.P., d/b/a Hollywood Presbyterian Medical Center ("HPMC") ("Defendant") moves for terminating sanctions against Plaintiff Veronica Brown ("Brown") ("Plaintiff") dismissing Plaintiff's action with prejudice and imposing \$6,810.00 in monetary sanctions against Plaintiff, payable to Defendant within 30 days of the hearing on this Motion. (Notice Motion, pg. 2; see also 8/21/26 Notice of Errata; C.C.P. §§2023.010 et seq., 2023.030 et seq., 177.5, 2023.030(a)-(c).) Alternatively, Defendant requests issue and/or evidentiary sanctions against Plaintiff, as specified herein; and (2) imposing \$6,810.00 in monetary sanctions. (Notice Motion, pg. 2; C.C.P §§2023.010 et seq., 2023.030 et seq., 177.5.)

Defendant moves on the grounds that Plaintiff failed to comply with this Court's Order dated August 22, 2025, that required Plaintiff to provide verified, Code-compliant, further discovery responses to Defendant's Requests for Production ("RFP") Nos. 1-6, 9, 11-16, 18-20, 23-25, 28-30, 39, 46, and 48-53, and Form Interrogatories ("FROG") Nos. 202.1 and 203.1(c). (Notice Motion, pg. 2; Decl. of Mansour ¶12, Exh. A.) Defendant also moves on the grounds that the Court ruled in Defendant's favor on a prior motion for sanctions heard on February 25, 2026, for this exact same misconduct, wherein the Court awarded Defendant

\$8,250.00 in monetary sanctions for Plaintiff's discovery abuse. (Notice Motion, pg. 2.)

Background

On August 22, 2025, the parties stipulated, following an IDC with this Court, and this Court ordered, that Plaintiff to provide supplemental responses to RFP Nos. 1-6, 9, 11-16, 18-20, 23-25, 28-30, 39, 46, and 48-53, and FROG Nos. 2.6(b), 9.1, 12.1, 202.1(a), 202.1(b), 203.1(c), and 217.1, as it

relates to RFA Nos. 4-6, 8, 19, 21, 22, 24, and 26-35, by September 5, 2025. (See 8/22/25 Notice, Joint Stipulation, and Order.)

On February 25, 2026, this Court denied Defendant's motion for terminating, issue, and evidentiary sanctions against Plaintiff, and instead granted only monetary sanctions against Plaintiff and her counsel on the basis that this Court had not assessed lesser sanctions first in an attempt to ensure Plaintiff's compliance. (See 2/25/26 Minute Order, pg. 3 of 6.)

On July 17, 2026, Defendant filed the instant motion. Plaintiff filed her opposition on September 2, 2026. Plaintiff's former counsel filed an opposition on September 2, 2026. Defendant filed its reply on September 9, 2026.

Terminating Sanctions

The Court, "after notice to any affected party . . . and after opportunity for hearing," may impose terminating and/or monetary sanctions for misuses of the discovery process.

(C.C.P. §2023.030(a) and (d).)

Misuses of the discovery process include failing to respond or to submit to an authorized method of discovery and disobeying a court order to provide discovery. (C.C.P. §§2023.010(d), (g).)

"A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction." (Mileikowsky v. Tenet

Healthsystem (2005) 128 Cal.App.4th 262, 279-280.) When deciding whether to impose terminating sanctions, courts generally weigh three factors: (1) whether the party subject to the sanction acted willfully, (2) the detriment to the party seeking discovery, and (3) the number of formal and informal unsuccessful attempts to obtain discovery. (Creed-21 v. City of

Wildomar (2017) 18 Cal.App.5th 690, 702; Lang v. Hochman (2000) 77

Cal.App.4th 1225, 1246.) Nonmonetary

sanctions require evidence of willful violations of discovery orders or a history of egregious abuses of discovery. (R.S.

Creative, Inc. v. Creative Cotton, Ltd. (1999) 75 Cal.App.4th 486.) A prerequisite to the imposition of nonmonetary sanctions is willful disobedience of a court order. (New Albertsons, Inc. v. Superior Court (2008) 168 Cal.App.4th 1403.) By requiring a violation of a discovery order before imposing nonmonetary sanctions, California courts can be sure that the offending party does not intend to comply with the discovery request. (Ruvalcaba v. Government Employees Insurance Co. (1990) 222 Cal.App.3d 1579, 1581.)

"[A] terminating sanction issued solely because of a failure to pay a monetary discovery sanction is never justified." (Newland v. Superior Court (1995) 40 Cal.App.4th 608, 615.)

Defendant moves for terminating sanctions on the grounds Plaintiff willfully disobeyed this Court's 8/22/25 Order, and monetary sanctions have not been an effective means of ensuring compliance. (See Motion, pg. 6.) Here, terminating sanctions are not appropriate because Plaintiff has apparently finally complied with the outstanding discovery. The Court acknowledges Plaintiff has been delinquent in its discovery responses; however, terminating sanctions is an extreme remedy, and the Court is not inclined to grant the ultimate sanction at this juncture.

Based on the foregoing, Defendant's motion for terminating sanctions is denied.

Evidentiary Sanctions

When a party violates a discovery order, a trial court may prohibit the violating party from introducing evidence at trial that contradicts the opponent's claims or supports the violating party's defenses. (Juarez v. Boy Scouts of America (2000) 81 Cal.App.4th 377, 387.) While Defendant argues that Plaintiff violated this Court's order compelling verified discovery responses and finally producing items previously withheld, the Court finds that Defendant now has the benefit of the discovery responses and production of documents, rendering the imposition of evidentiary sanctions inappropriate. It is well established that the primary purpose of discovery sanctions is curative, not punitive. (Welgoss v. End (1967) 252 Cal.App.2d 982, 992; Caryl Richards, Inc. v. Superior Court (1961) 188 Cal.App.2d 300, 303-304.)

Issue Sanctions

In light of this Court's ruling on Defendant's request for evidentiary sanctions, Defendant's additional request in the alternative for issue sanctions is denied.

Monetary Sanctions

In addition to or in lieu of any other sanction, the court may order the disobedient party or counsel responsible or both to pay the reasonable expenses, including attorney fees, incurred as a result of the failure to obey (including fees on the sanctions motion). (C.C.P. §2023.030(a).)

Defendant requests monetary sanctions in the amount of \$6,810.00 against Plaintiff for attorneys' fees in connection with the preparation, filing, and service of the instant motion.

Defendant's counsel declares his hourly rate is \$450.00/hour. The Court determines Plaintiff's counsel's hourly rate is reasonable based on the experience of the Court. Defendant's counsel declares that he spent 4 hours meeting and conferring prior to the filing of this motion, spent 6 hours in preparation of this motion and anticipates an additional 5 hours analyzing an opposition and preparing a reply (Decl. of Mansour ¶123.) The Court therefore awards sanctions against Plaintiff in the amount of \$6,810 ($\$450.00/\text{hour} \times [4 \text{ hours meeting and conferring} + 6 \text{ hours on motion} + 5 \text{ hours to review opposition and draft reply}] + \$60 \text{ filing fee} = \$6,810.00$), which Plaintiff is ordered to pay to Defendant by October 6, 2026.

Conclusion

Defendant's motion for terminating sanctions against Plaintiff is denied.

Defendant's motion in the alternative for evidentiary sanctions is denied.

Defendant's request in the alternative for issue sanctions is denied.

Defendant's request for monetary sanctions against Plaintiff is

granted in the amount of \$6,810.00. Plaintiff is ordered to pay \$6,810.00 to Defendant by October 6, 2026.

Plaintiff's request for sanctions against Defendant and Defendant's counsel of record is denied.

Moving Party to give notice.

Dated:

September _____, 2026

Hon. Daniel M. Crowley

Judge of the Superior
Court